

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As jointly prayed, put up as fresh on 27 March 2023.

Order Date :- 20.3.2023

skv

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri Abhishek Srivastava, learned counsel for the respondent Electricity Department, prays for and is granted a weeks' time to obtain instructions.

List as fresh on 5.4.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery citation dated 5.1.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.3.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Supplementary affidavit filed today is taken on record.

As prayed by learned counsel for the respondents he is granted time to complete his instructions.

Put up as fresh on 17.04.2023.

Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.4.2023

Shivangi

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Counsel for the respondent Electricity Department prays for and is granted two weeks' further time to complete his instructions.

Put up as fresh on 4.05.2023.

Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 17.4.2023

SL

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Rajendra Kumar-IV, J.

Learned counsel for the Electricity Department has handed over certain documents to learned counsel for the petitioner.

Learned counsel for the petitioner prays for time to complete his instructions.

List as fresh on 9.5.2023.

The interim order is extended till the next date of listing.

(Rajendra Kumar-IV, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.5.2023

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 8486 of 2023

Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed on behalf of petitioner, list as fresh on 15.5.2023.

Order Date:- 9.5.2023

CS/-

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

1.

Neutral Citation No. - 2023:AHC:104402-DB

Court No. - 21

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Petitioner :- Malhotra Ice Factory

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri B. C. Rai, learned counsel for the petitioner, learned Standing Counsel for respondents 1 and 2 and Sri Abhishek Srivastava for respondents 3 and 4. With their consent, the instant petition is being disposed of finally at this stage, without inviting a formal counter affidavit.

2. The petitioner has prayed for quashing of the recovery citation dated 05/01/2023 and order dated 27/07/2019 passed by respondent No.4 and for a mandamus restraining the respondents from giving effect to the impugned recovery citation.

3. The petitioner had earlier approached this Court by filing Writ Petition No.59013 of 2006 challenging the assessment order dated 19/9/2006 passed by the respondents in exercise of powers under Section 126 of the Electricity Act, 2003 (in short 'the Act'). The said writ petition was disposed of by order dated 11/01/2007 granting time to the petitioner to file objection; to deposit Rs.1,00,000/- and upon which the electric connection would be restored and to pay regular bills. Thereafter another assessment order was passed on 5/2/2007 which, according to

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the petitioner, was in violation of principles of natural justice. It was challenged by the petitioner by filing Writ-C No. 8029 of 2007. The said writ petition was disposed of by an order dated 09/11/2009. The assessment order was quashed and matter was remitted back to the Assessing Authority to pass a fresh order. It was left open to the department to get the meter tested by following the procedure laid down in **Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited and another** (decided on 15/01/2019). It seems that thereafter, the respondents did not pass any fresh assessment order nor got the meter tested. Instead, they raised monthly bill including therein arrears of past months. The petitioner challenged the same by filing Writ-C No. 27352 of 2013 and 18411 of 2017 and both the writ petitions were decided by a common order dated 23/10/2018 with direction to the Executive Engineer to pass fresh order taking into consideration the objection filed by the petitioner as well as the directions issued by this Court in previous petitions. In pursuance thereof, the impugned order dated 27/07/2019 had been passed. Thereunder the petitioner has been directed to deposit Rs.6,88,383/- as the assessment amount under Section 126 of the Act and another sum of Rs.47,50,436/- as arrears of electricity dues after the new meter was installed in place of old one in June, 2006.

4. According to the petitioner, it had filed a contempt petition against the respondents for having passed order dated 27/7/2019 without following the directions contained in the previous orders of this Court.

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5. Learned counsel for the petitioner submitted that the demand of Rs.6,88,382/- as the assessment amount under Section 126 of the Act is wholly illegal in as much as no fresh assessment order was issued by the respondent nor the meter was got tested. In respect of the demand of Rs.54,38,819/-, it is submitted that the objection filed by the petitioner in compliance of the order dated 23/10/2018 in two previous writ petitions was not considered at all. He submits that according to the petitioner, the electricity dues is only in a sum of Rs. 17 lacs and odd.

6. Sri Abhishek Srivastava, counsel for the respondent-Electricity department is in receipt of instructions. He fairly concedes that no fresh assessment order had been passed after the order of this Court dated 9/11/2009 in Writ-C No.8029 of 2007. He also is not in a position to dispute that the objections filed by the petitioner from time to time against the bills towards electricity dues, has not been considered while passing the impugned order dated 27/7/2019. He submits that the respondents will pass a fresh assessment order and that the objections filed by the petitioner against the monthly bill, will also be duly considered under Clause 6.5 of the U.P. Electricity Supply Code, 2005. subject to deposit of such sum as this Court may direct. He further submits that the petitioner had already applied for permanent disconnection but is not permitting the respondents to remove the meter.

7. Sri B.C. Rai, counsel for the petitioner states that he has already instructed the petitioner to permit the respondents to remove the meter and that no obstruction will be caused in removal of the meter by the

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respondents.

8. Having regard to the facts of the case and the submissions made, we dispose of the writ petition as follows :-

(a) The petitioner will deposit Rs.20 lacs with respondent No.4 within two weeks from today.

(b) Upon deposit of the said amount, respondent No.4 will fix a date for hearing and will proceed to make assessment under Section 126 of the Act strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(c) As it is pointed out that the dispute relating to arrears of electricity relates to two different Divisions i.e., Division No. III and Division No. V and therefore, as agreed to by counsel for the parties, we direct the Superintending Engineer, to decide the dispute relating to arrears of electricity within four weeks of the receipt of objection by the petitioner alongwith true attested copy of the instant order. The objection will be filed within two weeks from today.

9. The impugned order as well as the impugned recovery citation will stand quashed.

Order Date :- 15.5.2023
skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)